

Additional District Judge, etc.

Sr. No. of order/ proceedings	Date of order/ Proceeding	Order with signature of Judge, and that of Parties' counsel, where necessary
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Syed Tajammul Hussain Bukhari, Advocate for petitioner.
Umair Ahmad, Respondent No. 5 in person.
Messrs Musleh-ud-Din Khan and Malik Muhammad Bakhsh Khakhi, A.A.Gs, Syed Ali Allow-u-Din and Ahmad Hassan Khan Khichi Advocates.
Rana Ghulam Hussain, Assistant Attorney General for Pakistan, Dr. Muhammad Azeem Raja Advocate.

The petitioner, Khizar Hayat, through this constitutional petition has called in question order dated 10.06.2026 passed by the learned Civil Judge/Rent Controller Multan/Respondent No. 2, whereby objection petition filed by the petitioner against execution of ejectment order passed against the petitioner and in favour of private respondent Nos. 3 to 7 (**‘Respondents’**) has been dismissed, and has also called in question the judgment dated 17.06.2026, whereby the appeal filed by the petitioner against the said order has been dismissed by the learned Additional District Judge, Multan/Respondent No. 1. Both the aforementioned orders are collectively referred to as **‘the impugned orders’**.

2. The Petitioner has called in question the impugned orders by claiming that after passing of order for ejectment, which was upheld by this Court, the respondents had orally extended the period of tenancy for 15-years by enhancing the monthly rent from Rupees 4,40,000/- to Rupees 6,00,000/- per

month and after receiving the rent in terms of extended period of tenancy were now precluded from getting the ejectment order enforced through the pursuit of execution petition.

On the other hand, respondent No. 5, Umair Ahmad, has appeared in the Court and has stated that there was no agreement between the parties for extension of tenancy and the petitioner had wrongly claimed that tenancy agreement had been orally extended.

3. The perusal of the record shows that initially the tenancy of the premises i.e., property No. 213/1, Ward No. XXIV-EX, Khewat No.1222 with black ink, 1197 with red ink, Khatoni No.1796, Qila No.3, Salam Khata 16K-0M Land, situated near Orient Warehouse, Northern Bypass Road, Mouza Neelkot, outside Hadd Committee, District Multan with construction thereon was created between the parties at monthly rent of Rs.2,00,000/- through agreement No.7182 dated 01.07.2017 valid upon 30.06.2025, which rate of rent in terms of the said agreement increased from time-to-time. The petitioner is running an educational institution at the said premises. The respondents filed ejectment petition on ground of default and the same culminated in order dated 03.10.2023 passed by the Special Judge (Rent), Multan, against the petitioner and the same was upheld by the Appellate Court vide judgment dated 06.06.2024. Petitioner challenged the same before this Court through WP. No.10420 of 2024, which was dismissed on 21.01.2026, however, the petitioner was allowed time till 30.04.2026 to vacate the rented premises subject to the following conditions:-

- (i). The petitioner shall forthwith clear all outstanding arrears of rent, if any, to the satisfaction of the Executing Court; and*
- (ii). The petitioner shall also deposit advance rent for the period up to 30.04.2026 @ Rs.440,000/- per month with the Executing Court within fifteen days from the date of passing of said order.*

It was, however, made clear that in case the petitioner fails to clear arrears of rent, if any, or does not deposit the advance rent for the extended period granted through the said judgment, the said concession shall automatically stand withdrawn and cease to have effect and the petitioner shall be liable to forthwith eviction.

4. Now the petitioner claims that after passing of order by this Court directing the petitioner to vacate the premises till 30.04.2026, through mutual settlement between the parties, the original agreement was further extended for 15 years from February 2026 to February 2041 with monthly agreed rent of Rupees 6,00,000/- and the rent for the months of February to June 2026 was paid by the petitioner and received by the respondents and in view of the said settlement objection petition was filed before the learned executing court where execution proceedings were pending, with prayer to dismiss the execution petition due to novation of contract between the parties. Both the courts below have dismissed the said execution petition, which orders are under challenge before this court.

5. It is pertinent to mention here that as the original tenancy agreement between the parties was through a written document, therefore, in case fresh agreement had to be entered between the parties the

same should have been in the written form as an oral agreement alleged to have been executed by and between the parties cannot ordinarily vary to terms of a written agreement. Reliance is placed on Elahi Bakhsh through legal heirs and others versus Muhammad Iqbal and another (2014 SCMR 1217), wherein it is provided that oral statement of a party to an instrument which varied or tended to vary terms of a written document/agreement could not be admitted into evidence.

6. In the present case, it is claimed that it was orally agreed between the parties to settle the dispute by enhancing the tenancy period at higher rate of rent and the rent at the said enhanced rate is stated to have been paid by the petitioner and received by the respondents, which fact has been asserted by the petitioner and denied by the other side, therefore the entry of agreement between the parties is disputed. Although, the respondents were not precluded from orally granting or extending time to the petitioner to vacate premises, yet as this Court had fixed time for vacation of premises as 30.04.2026, the said agreement even if orally entered into between the parties was required to be made part of court proceedings either before this Court or through mutual agreement between the parties by recording statements before the executing court, which process had not been adopted despite the fact that the petitioner claims that said agreement had been entered into between the parties in February, 2026 after the confirmation of ejectment order by this Court and rent at enhanced rate was paid in furtherance thereof but the petitioner never made any attempt to bring the said

settlement before the court before expiry of time period for vacation of premises fixed by this Court, hence, the petitioner could not be allowed benefit of his verbal assertion that through an oral agreement time frame of tenancy had been enhanced. Reliance in this regard is placed on Mst. Qadiran Begum Versus Dr. Jahangir Ahmed (PLD 2001 Karachi 124), wherein execution application filed by the landlady was objected to by the tenant contending that landlady had entered into a fresh agreement with him and she has also received money from him for enhanced rent, which agreement was claimed to be forged by the landlady and the court held that alleged agreement, even if assumed to have been executed by parties, was invalid as no payment, compromise or agreement would be acceptable or legal, unless such payment, compromise or agreement was made before the authority passing the order or with its permission. In Fazal Maqsood and another Versus. Mst. Naseem Begum and 3 others (2020 CLC 884 Lahore) while discussing the scope and effect of compromise it was held that compromise comes from the Latin *compromissum*, which means ‘*mutual promise*’. In order that a compromise be accepted, there are three conditions; (i) an adjustment of the suit; (ii) to the satisfaction of the court; (iii) by means of lawful agreement or compromise. In Umar Bakhsh and 2 others Versus Azim Khan and 12 others (1993 SCMR 374) it was held that compromise would be complete only when it was accepted by the court and orders are passed by the court as desired by the parties. Court would consider the document to be compromise when both parties signing it agree and

reiterate the contents before the court. The said ingredients are missing in the instant case. In somewhat similar situation, in case titled as Syed Ameer Hussain Shah versus Syed Dilbar Hussain Shah and 3 others (2011 MLD 1956 Peshawar) it has been held as under:-

“8. It was also the bounden duty of the petitioner to inform the Court about the alleged compromise. If at all it was not admitted or acknowledged by the respondent No.1, then the remedy was available under Order XXIII Rule 3, C.P.C. to seek the attestation of such compromise by filing the same in the Court, and in case it has not been admitted by the other side, then the petitioner was at liberty to prove the terms and conditions of the alleged compromise but instead of availing the proper remedy, on the same facts and circumstances, he has filed the instant application which is apparently not maintainable.”

In view of the prevalent facts of the case coupled with the principles laid down in the aforementioned judgments, the ground raised by the petitioner that tenancy had been orally extended cannot be assumed without the other side conceding to the same.

7. It is pertinent to mention here that where period of tenancy is orally extended the said extension at the most can be treated as for one month only and cannot be treated as an extension for a period beyond that time frame. Reliance in this behalf may be placed on judgments reported as Muhammad Islam versus Additional District Judge and others (2024 YLR 776 Lahore), Mohammad Akram Bhatti versus Additional District Judge, Attock and 3 others (2021 CLC 1405 Lahore), Sohail Niaz Khan versus Bilal Rizwan and others (2024 YLR 1981 Lahore), wherein it is laid

down that it is also settled principle of law that an oral tenancy is a tenancy on month to month basis and the petitioner was obligated to vacate the rented premises, upon intimation of the landlord. In case titled Asad Ali Khan versus Special Judge Rent and others (PLD 2019 Lahore 363), this court has held that where period of tenancy had expired, the tenant who relied upon its extension had to establish through cogent evidence the time period for which it had been extended otherwise oral extension would tantamount to extension of one month only and such tenancy had to be extended on each and every successive month and terminable at one month's notice and it was also held that filing of ejectment petition was itself a notice for termination of tenancy. Keeping the said principle in view, it can also be held that pressing upon petition for enforcement of order of ejectment through execution petition is also a notice to the tenant/objection petitioner that tenancy, even if claimed to be orally extended, had expired. Reliance in this behalf in addition to the principles laid down in the aforementioned judgments is also placed on Muhammad Nayab versus Additional District Judge, Rawalpindi and 2 others (2016 MLD 1095 Lahore), Muhammad Taufeeq versus Muhammad Nawaz and 2 others (2015 CLC 1187 Lahore), Aftab Ahmad Raja versus Malik Faizullah Khan Afridi and others (2011 YLR 2205 Lahore) and Sardar Muhammad versus Khawaja Muhammad Nazar (2004 CLC 289 Kar.).

8. In view of the above, even if for the sake of convenience it is assumed that the tenancy had been orally extended, the same would entitle the petitioner for extension of tenancy only for a period of

one month and not beyond one month from the date of vacation fixed by this Court i.e. 30.04.2026, which would be from 01.05.2026 to 31.05.2026 and the said period has already expired, therefore, he cannot claim for extension to holdover the possession of property under tenancy beyond the said period unless consent is given by the respondents/landlords, which has not been done.

9. In view of the above, as the other party had not consented to the extension of period of tenancy beyond the timeframe earlier fixed by this Court, the petitioner cannot claim the same as of right. However, as the petitioner claims that more than 2000 students are getting education in the premises and he has to make alternate arrangements for shifting the premises and his installations, articles and belongings available at the spot may be damaged if forcible eviction takes place, therefore, a period of two months expiring on 31.08.2026 is provided to him to vacate the premises subject to payment of outstanding rent/dues within time to the respondents, failing which the order providing for afore-mentioned extension period shall cease to have its effect. It is clarified that as the afore-referred extension has been provided to the petitioner as the future of the students is at stake, which he requires to safeguard by making alternate arrangements, the petitioner shall not cause damage to the property of the respondents and shall properly maintain the same in the meanwhile. However, it is clarified that no further objection petition shall be entertained on the afore-mentioned grounds and extension of tenancy any further shall not be assumed

unless the respondents appear before the court and get their statements recorded to affirm the same.

10. This constitutional petition is **disposed of** in the above terms.

(Muzamil Akhtar Shabir)
Judge

Zeeshan Khan

APPROVED FOR REPORTING

Judge